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Case Number: 23STCV09104 Hearing Date: September 21, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508 (formerly Department 50)

SIRANUSH AKHERDYAN,

Plaintiff,

vs.

MASIS TAMAZYAN, et al.,

Defendants.

Case No.:

23STCV09104

Hearing Date:

September 21, 2026

Hearing

Time: 2:00 p.m.

[TENTATIVE

AND PROPOSED] STATEMENT OF DECISION BY THE COURT ON DEFENDANTS MASIS TAMAZYAN
AND ELEN TAHMASIAN'S MOTION FOR JUDGMENT (CODE CIV.

PROC., § 631.8)

AND RELATED CROSS-ACTION

The Court, having considered the record and the briefs filed by the parties, issues this tentative and proposed Statement of Decision. This tentative and proposed Statement of Decision will become the Statement of Decision unless, within 15 days hereafter, a party serves and files objections to the tentative and proposed Statement of Decision.

Background

Plaintiff Siranush

Akherdyan ("Plaintiff") filed this action on April 25, 2023 against Defendants Masis Tamazyan ("Tamazyan") and Elen Tahmasian ("Tahmasian") (jointly, "Defendants"). On December 2, 2024, Plaintiff filed a First Amended Complaint ("FAC") alleging two causes of action for (1) declaratory relief re: real property resulting trust and (2) "in the alternative," declaratory relief re: deed of trust priority.

On July 7, 2023,

Tahmasian filed a Cross-Complaint against Plaintiff and Cross-Defendants Soorage Tomasian and Tamazyan. Cross-Defendants Soorage Tomasian and Tamazyan were dismissed from the Cross-Complaint. The Cross-Complaint alleges five causes of action for (1) fraudulent conveyance, (2) quiet title, (3) cancellation of instrument, (4) negligence, and (5) declaratory relief.

This matter came on for trial on April 27-28, 2026, in Department 50 (now 508) of the above-entitled court

before the Hon. Teresa A. Beaudet, sitting without a jury. After both parties rested, Defendants made "an oral motion for judgment pursuant to C.C.P. 631.8 as to the first amended complaint as stated on the record." (Minute Order 4/28/26, p. 1.) No objection to the making of the motion was interposed and Plaintiff responded orally thereto.

Thereafter, the Court requested

briefing by the parties with citations to the evidence from the transcripts of the trial and application of the legal grounds for the motion to that evidence.”

Defendants filed their motion for judgment pursuant to Code of Civil Procedure section 631.8 on August 7, 2026. Plaintiff filed her opposition on August 28, 2026. Defendants replied on September 11, 2026.

Legal Standard

Code of Civil Procedure section 631.8, subdivision (a) provides as follows:

“After a party has completed his presentation of evidence in a trial by the court, the other party, without waiving his right to offer evidence in support of his defense or in rebuttal in the event the motion is not granted, may move for a judgment. The court as trier of the facts shall weigh the evidence and may render a judgment in favor of the moving party, in which case the court shall make a statement of decision as provided in Sections 632 and 634, or may decline to render any judgment until the close of all the evidence. The court may consider all evidence received, provided, however, that the party against whom the motion for judgment has been made shall have had an opportunity to present additional evidence to rebut evidence received during the presentation of evidence deemed by the presenting party to have been adverse to him, and to rehabilitate the testimony of a witness whose credibility has been attacked by the moving party. Such motion may also be made and granted as to any cross-complaint.”

“The purpose of Code of Civil Procedure section 631.8 is to enable the court, when it finds at the completion of plaintiff’s case that the evidence does not justify requiring the defense to produce evidence, to weigh evidence and make findings of fact. [Citation.] Under the statute, a court acting as trier of fact may enter judgment in favor of the defendant if the court concludes that the plaintiff failed to sustain its burden of proof. [Citation.] In making the ruling, the trial court assesses witness credibility and resolves conflicts in the evidence.” (Orange County Water Dist. v. MAG Aerospace Industries, Inc. (2017) 12 Cal.App.5th 229, 239, internal

quotations omitted.) “When considering a motion for judgment during a bench trial, ... [e]ven if a plaintiff introduces evidence sufficient to establish a prima facie case, the trial court may still conclude the plaintiff has not carried his or her burden of proof and grant judgment in favor of the moving defendant. For example, ... the trial court may disbelieve the plaintiff’s evidence, draw adverse (rather than favorable) inferences therefrom, and credit contrary evidence introduced through cross-examination or otherwise.” (Ibid.)

Discussion

A. Allegations of the FAC

In the FAC, Plaintiff alleges, inter alia, that the real property which is the subject of this action is located at 108 W. Maple St., #12, Glendale, California 91204. (FAC, ¶ 8.)

“On or about March 24, 1998, Plaintiff’s husband wanted to purchase the subject property as a home for Plaintiff. Plaintiff and her husband did not want Plaintiff’s name on the title because they believed that it would effect [sic] Plaintiff’s benefits.” (FAC, second ¶ 7.) “Plaintiff’s husband and Defendant Masis Tamazyan agreed that the title of the subject property would be in Defendant Masis Tamazyan’s name. They agreed that Plaintiff’s husband would pay for the subject property. They also agreed that Plaintiff was the true owner of the subject property. Defendant Masis Tamazyan is Plaintiff’s son.” (FAC, second ¶ 8.)

Plaintiff further alleges that “[o]n or about March 24, 1998, Plaintiff’s husband wanted to ensure that Defendant Masis Tamazyan did not remove Plaintiff from the subject property and transfer the title. To accomplish this Plaintiff’s husband and Defendant Masis Tamazyan agreed that Defendant Masis Tamazyan would sign a note and Deed of Trust in the amount of the purchase price of the subject property and that Plaintiff would be the beneficiary of the Deed of Trust.” (FAC, ¶ 9.) “On March 24, 1998, Defendant Masis Tahmazian signed a note and Deed of Trust as described above. The note and Deed of Trust was given to Plaintiff.” (FAC, ¶ 10.) “On March 26, 1998, a Grant Deed was recorded transferring title of the subject property to Defendant Masis Tamazyan.” (FAC, ¶ 11.)

“Since the purchase of the subject property to

the present, Plaintiff has resided at the subject property.” (FAC, ¶ 12.) “On December 21, 2020, Defendant Masis Tahmazian signed an Interspousal Transfer Grant Deed giving the subject property to his wife Defendant Elen Tahmasian. The Interspousal Transfer Grant Deed was recorded on December 29, 2020... On information and belief, Plaintiff alleges that Defendant Elen Tahmasian did not pay value for subject property.” (FAC, ¶ 13.) “Subsequently, Defendant Elen Tahmasian attempted to evict Plaintiff from the subject property,” and “Plaintiff is informed and believes and thereon alleges that Defendant Elen Tahmasian caused to be served a 15-Day Notice to Pay Rent or Move Out on Plaintiff.” (FAC, ¶¶ 14-15.) “On August 6, 2021, Defendant Elen Tahmasian filed an unlawful detainer action against Plaintiff, Tahmasian vs Ahkverdyan, Case No.: 21PDUD00702.” (FAC, ¶ 16.) “On August 23, 2021, Plaintiff recorded her Deed of Trust...” (FAC, ¶ 17.)

B. The Stipulated Record

a. Exhibits Admitted by Stipulation

At the trial, the parties stipulated to the admission of the following exhibits:

Exhibit 1, the “Straight Note dated March 20, 1998, in the amount of \$68,000.00 signed by Tamazyan and payable to Plaintiff[1] along with the Short Form Deed of Trust and Assignment of Rents dated March 23rd, 1998, also signed by Tamazyan for the benefit of Plaintiff, with a recordation date of August 23, 2021.

Exhibit 2, the Grant Deed dated March 25, 1998, for the subject property, conveying title to Tamazyan as a married man as his sole and separate property, recorded March 26, 1998.

Exhibit 3, the Quitclaim Deed dated March 17, 1998, signed by Tahmasian, and recorded March 26, 1998, regarding the subject property.

Exhibit 4, the Interspousal Transfer Grant Deed conveying the subject property by Tamazyan to Tahmasian dated December 21, 2020, and recorded December 29, 2020.

Exhibit 5, the Unlawful Detainer Summons and Complaint filed by Tahmasian against Plaintiff on August 6, 2021.

b.

Facts

Admitted by Stipulation

At the trial, the parties stipulated to the admission of the following facts:

Stipulated Fact 1. On or about March 24, 1998, Tamazyan signed a promissory

note and Deed of Trust, commonly known as 108 W.

Maple Street, Unit #12, Glendale, CA, naming

Plaintiff as beneficiary. (RT-1, 6:15-20.)

Stipulated Fact 2. Exhibit 1 is a copy of the Note and Deed of

Trust signed by Tamazyan. (RT-1, 7:1-3.)

Stipulated

Fact 3. On March 26, 1998, a Grant Deed was recorded

with the

Los Angeles County Recorder as Document No.

98-495394 vesting title to the Property in "Masis Tamazyan, a married man as

his sole and separate property." (RT-1, 7:4-8.)

Stipulated Fact 4. Plaintiff has resided at the Property from 1998 to the present. (RT-1, 7:9-11.)

Stipulated Fact 5. On December 21, 2020, Tamazyan signed an interspousal transfer grant

deed conveying the property to his then-wife, Tahmasian, which was recorded on December

29, 2020 as Document No. 20201748359. (RT-1 7:12-17.)

Stipulated Fact 6. Defendants thereafter sought possession of the property through an

unlawful detainer action. (RT-1 7:18-20.)

Stipulated Fact 7. On August 23, 2021, Plaintiff recorded the March 24, 1998 deed of

trust as Document No. 200211289066. (RT-1 7:25-26.)

Stipulated Fact 8. Plaintiff is Tamazyan's mother. (RT-1 7:21-24.)

Stipulated Fact 9. The interspousal transfer grant deed conveying the property to

Tahmasian, recorded on December 29, 2020, was recorded prior in time to when

Plaintiff recorded her Deed of Trust on August 23, 2021. (RT-1 7:28-8:3.)

C. The Material Issues to be Determined

Defendant identified the following issues as the basis for the motion for judgment:

1.

The first cause of action for declaratory relief based on a resulting trust is barred by the four-year statute of limitations set forth in California Code of Civil Procedure section 343.

2.

Plaintiff has failed to prove by clear and convincing evidence the elements of a resulting trust under California law.

3.

The second cause of action for declaratory relief regarding the priority of Plaintiff's 1998 Deed of Trust fails as a matter of law under California Civil Code section 1214 because Tahmasian recorded first and Plaintiff recorded eight months later, and there was no evidence presented that Tahmasian had actual or constructive notice of the Plaintiff's unrecorded 1998 Deed of Trust.

1.

Statute of Limitations for the First Cause of Action

"The applicable statute of limitations on an action to establish a resulting trust is the four-year statute found in Code of Civil Procedure section 343. [Citation.] The statute of limitations does not begin to run against a voluntary resulting trust in the absence of repudiation by the trustee, that is, until demand has been made upon the trustee and the trustee refuses to account or convey." ((Estate of Yool (2007) 151 Cal.App.4th 867, 875.) "The only way a voluntary trustee can set the statute of limitations in operation in his favor is by a distinct act of repudiation amounting to a denial of the existence of the trust. No mere tacit failure to perform can be held to amount to such repudiation." ((Spector v. Miller (1962) 199 Cal.App.2d 87, 97.) "The statute of limitations does not run on a beneficiary of a resulting trust

until he has actual knowledge of repudiation or breach of trust. Ordinarily it begins to run upon the right to enforce a constructive trust from the time the beneficiary has notice or should know of the wrongful holding of the property. Where, as here, there is no claim of wrongdoing in the original placing of the title in defendant's name, the cause of action for a constructive trust does not arise until the transferee repudiates the oral promise or in some other way indicates she is holding the property adversely to the plaintiff in violation of her duty." (Martin v. Kehl (1983) 145 Cal.App.3d 228, 240, internal citations omitted.) "[A] demand by the beneficiary is not enough to start the running of the period of limitation. The time runs from the refusal." ((Oeth v. Mason (1967) 247 Cal.App.2d 805, 812.)

Defendants contend

that "[t]he date-certain repudiation here is December 17, 2015. Masis openly disavowed any trust, under oath, in In re Estate of Yeznik Tamazyan (LASC Case No. BP151528) — the probate of the very man Plaintiff says bought the Property for her." (Mot., 10:16-18.) At trial, Tamazyan testified that both he and his mother, Plaintiff, were parties to the probate hearing. (RT-2, 20:9-14.) Tamazyan was deposed under oath and asked about the subject property. (RT-2, 20:15-20.) Tamazyan testified that at the deposition, when asked about the ownership of the property, he answered, "I said I purchased that home. I purchased it for my retirement. I bought it. That's it. That was exactly words." (RT-2, 20:24-27.) He confirmed that those words remain true today. (RT-2, 20:28-21:1.) Tamazyan testified that Plaintiff was represented by an attorney at the deposition. (RT-2, 21:2-4.) Defendants contend that "[a] sworn declaration in judicial proceedings that the Property is the alleged trustee's own — bought for his own retirement — is the paradigm 'distinct act of repudiation amounting to a denial of the existence of the trust.'" (Mot., 10:24-11:1, quoting Spector v. Miller, supra, at p. 97.)

Defendants contend that Plaintiff had actual knowledge of the repudiation, namely, "[t]he most direct proof is her own testimony: she personally demanded title — 'I said, I want the house in my name' — and was personally refused: 'He said, I will not do it.' She responded by doing '[n]othing.'" (RT-1 46:10-27, 48:4-6.) (Mot., 11:3-6.) Defendants further assert that "Plaintiff could place that refusal only 'a long time ago' (RT-1 46:13-21) — but the December 17, 2015 disavowal supplies the date certain, and her knowledge of it is shown by the same record. She was a party

to the probate contest in which it occurred. (RT-2 20:12–14) She was herself deposed in that matter in 2014 and recalls testifying about ownership of this very Property — ‘I said it is mine, but it is in my son’s name’ (RT-1 40:25–41:3) — confirming that the Property’s ownership was actually and openly in controversy in 2014 and 2015; and she was represented by an attorney at the very deposition at which Masis disavowed any trust (RT-2 21:2– 4), whose knowledge the law imputes to his client.” (Mot., 11:7-15.) Defendants cite Civil Code section 2332 to demonstrate that the knowledge of Plaintiff’s attorney is imputed to Plaintiff; it states that “[a]s against a principal, both principal and agent are deemed to have notice of whatever either has notice of, and ought, in good faith and the exercise of ordinary care and diligence, to communicate to the other.” Defendants further assert that “[a]ctual knowledge, like any fact, may be found from circumstances. Sitting as trier of fact, the Court may — and on this record should — find that a party who was litigating over her former husband’s estate, was deposed about this Property’s ownership, had counsel present when her son swore the Property was his alone, and personally demanded title and was refused, actually knew her son claimed this Property as his own.” (Mot., 11:15-20.)

Moreover, Defendants assert that “[a]t the oral motion, Plaintiff argued that accrual waited for the August 6, 2021 unlawful detainer because ‘there’s no evidence presented of whether or not my client had actual notice of that repudiation.’ (RT-2 46:6–22.) The record is to the contrary: party status, counsel at the deposition, her own 2014 deposition testimony about this Property’s ownership, and a refusal delivered to her personally. A later, cumulative act of repudiation does not restart a limitations period that began with the first repudiation actually known to the beneficiary; otherwise section 343 would never run for any trustee who repudiates twice. Measured from December 17, 2015, the period expired December 17, 2019. Plaintiff filed suit April 25, 2023 — three years, four months, and eight days too late.” (Mot., 11:21-12:2.)

In opposition, Plaintiff contends that “Defendants Elen Tahmasian and Masis Tamazyan attempted to evict Plaintiff from the subject property. [CT V2, pg 30, In 26-28, pg 31, In 1-12] On August 6, 2021, Defendant Elen Tahmasian filed an unlawful detainer action against Plaintiff, Tahmasian vs Ahkverdyan, Case No.: 21PDUD00702. [Exhibit 5] Defendant Elen Tahmasian’s act of filing an eviction against Plaintiff is unequivocally a repudiation. Therefore, the statute of limitations does not start until 2021.” (Opp., 4:10-15.) Moreover, Plaintiff asserts that “Defendants attempt to establish

that the repudiation occurred in 2015 during a deposition of Defendant Masis Tamazyan. [CT V2, pg 20, ln 18-27] Repudiation required 'actual knowledge. Martin v. Kehl (1983) 145 Cal.App.3d at 240. No evidence was presented that Plaintiff was present at the deposition. [CT V2, pg 20, ln 9-28, pg 21, ln 1-4] If Plaintiff was not present there can be no 'actual knowledge' and therefore no repudiation." (Opp., 4:16-20.)

Defendants' reply contends that "[t]he Opposition's entire answer on accrual is that '[n]o evidence was presented that Plaintiff was present at the deposition' at which Masis disavowed any trust under oath. (Opp. 4:18–19.) First, physical presence is not the standard. The statute runs when the beneficiary" has actual knowledge, which "like any fact, may be proven by circumstantial evidence and found by the trier of fact." (Reply., 2:26-3:2.) Moreover, Defendants assert that "[t]he Opposition's affirmative theory is that the August 6, 2021 unlawful detainer was 'unequivocally a repudiation,' so the statute 'does not start until 2021.' (Opp. 4:13–15.) But the limitations period runs from the first repudiation actually known to the beneficiary; a later, cumulative act of repudiation does not restart a period that has already expired — otherwise section 343 would never run for any trustee who repudiates twice. Measured from December 17, 2015, the period expired December 17, 2019 — more than three years before this action was filed on April 25, 2023." (Reply, 3:15-21.)

Defendants' evidence demonstrates that Tamazyan repudiated the trust at the deposition held on December 17, 2025, by explicitly stating that he bought the subject property and that it is for his retirement. Plaintiff's opposition contends that this does not serve as actual notice, because she was not present at the deposition, but "actual knowledge need not be directly proved. It, like any other fact, may be inferred from circumstantial evidence." ((Gantner & Mattern Co. v. Hawkins (1949) 89 Cal.App.2d 783, 786.) Defendants provide evidence that Plaintiff's attorney was present at the deposition. Although Plaintiff's opposition asserts that this does not amount to actual notice, the opposition fails to address Civil Code section 2332, which provides that the knowledge of an attorney is imputed to a client. Plaintiff also does not provide legal support that her physical presence was required at the deposition. Plaintiff's testimony at trial, as discussed above, demonstrates that she believed the property to be hers, but it was held in Tamazyan's name (RT-1, 41:3), and, at one point, asked for the property to be placed in her name and Tamazyan explicitly rejected her request. (RT-1, 46:10-27.) Plaintiff

could not recall when this occurred, but expressed, multiple times, that it occurred “a long time ago.” (Ibid.) Although Plaintiff’s testimony does not provide a clear repudiation date, the deposition is an explicit date that established the repudiation. At a minimum, Plaintiff was on actual notice through her attorney from the deposition date, and her testimony further supports that Tamazyan repudiated Plaintiff’s ownership by refusing to place Plaintiff’s name on the property. The evidence from trial demonstrates that Plaintiff had actual notice of the repudiation on December 17, 2015, but she did not file the instant lawsuit until April 25, 2023, demonstrating that the first cause of action is barred by the statute of limitations.

2. First Cause of Action for “Declaratory Relief Re: Real Property Resulting Trust”

In the first cause of action for declaratory relief, Plaintiff alleges, inter alia, “that she owns a 100% interest in the Subject Property based on a resulting trust. Defendants disputes [sic] these allegations and allege that Defendant Elen Tahmasian owns an interest equal to 100%.... Pursuant to Section 1060 of the California Code of Civil Procedure, Plaintiff seeks a judicial declaration that Plaintiff is the owner of a 100% interest of the subject property.” (FAC, ¶¶ 20-21.)

“The owner of the legal title to property is presumed to be the owner of the full beneficial title. This presumption may be rebutted only by clear and convincing proof.” (Evid. Code., § 662.) “Ordinarily a resulting trust arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another. [Citations.] ‘The trust arises because it is the natural presumption in such a case that it was their intention that the ostensible purchaser should acquire and hold the property for the one with whose means it was acquired.’ [Citations.] Thus, Civil Code section 853 expressly provides that ‘when a transfer of real property is made to one person, and the consideration therefor is paid by or for another, a trust is presumed to result in favor of the person by or for whom such payment is made.’” (Martin v. Kehl, supra, 145 Cal.App.3d at pp. 238-239.) As noted in the stipulated facts, Tahmasian is the record owner of the property. Title of the property has never been in Plaintiff’s name, and Plaintiff testified that Tamazyan did not sign any documents stating he was holding the property for her. (RT-1, 37:4-7.). Thus, for Plaintiff to demonstrate the existence of a resulting trust, she must provide clear and convincing evidence that she paid funds

to be used to acquire the property. However, as Defendants contend, “[t]he trust follows the consideration,” and “[n]o version of the evidence has Plaintiff paying anything.” (Mot., 12:14-16.)

Plaintiff testified that “[t]he place where I’m living now, the only person who paid for it was my husband. My husband bought that place for me” (RT-1, 34:24-26), in addition to “[Tamazyan] did not contribute any money. My husband bought that place for me.” (RT-1, 44:24-28.) Shagen Shagenyan, Plaintiff’s son-in-law, testified that “more than half give Yeznik and half give Masis,” when discussing the amounts paid towards the purchase of the property.[2] (RT-1 21:1-14.) Tamazyan also attests that he, alone, paid the price of the property in full, with a \$75,000 check. (RT-2, 16:2-8.) Thus, Defendants contend that “a purchase-money resulting trust could arise, if at all, only in favor of the payors — Yeznik, whose estate was probated in BP151528 and is not before this Court, and/or Masis — never Plaintiff.” (Mot., 12:22-24.)

Defendants further contend that, at trial, Plaintiff “abandon[ed] resulting trust doctrine for an express one. A true resulting trust needs no writing — it arises ‘[b]y operation of law’ from payment of the purchase price (Probate Code section 15206, subdivision (c)), which is precisely Plaintiff’s problem, because she paid none of it.” (Mot., 12:26-13:2.) Defendants assert that “[a]n intentional trust with a ‘designated’ beneficiary is an express trust, and an express trust in real property must be ‘evidenced’ by ‘a written instrument’ signed by the trustee or settlor.” (Mot., 13:2-4; Prob. Code, § 15206 [“A trust in relation to real property is not valid unless evidenced by one of the following methods: (a) By a written instrument signed by the trustee... (b) By a written instrument conveying the trust property signed by the settlor.”].) As noted above, Plaintiff did not sign documents stating that Tamazyan held the property for her.

Moreover, Defendants contend that “[t]he note and short-form deed of trust are security instruments, not declarations of trust, and Plaintiff’s counsel confirmed on the record that Plaintiff does not claim the deed of trust as a conveyance of the Property to her. (RT-1 57:22–25.) What the evidence did establish is a deliberate family arrangement inconsistent with beneficial ownership in Plaintiff. Title was placed in Masis’s name by design — at Plaintiff’s own suggestion (RT-1 28:16–24) — so that her government benefits would be preserved: ‘Because I was receiving benefits from the government. I didn’t want to lose those income.’ (RT-1 28:25– 27.) ... Defendants do not press this point to fault Plaintiff for a choice made a quarter-century ago; they press it because it defines the arrangement the family actually made.

Beneficial ownership in Plaintiff is precisely what that arrangement was structured to avoid, and equity does not lightly declare an ownership the claimant herself long disclaimed." (Mot., 13:9-17.)

In opposition, and in addition to some of the previously mentioned facts, Plaintiff contends that she "testified her husband purchased the house for her. [CT VI, pg 28, ln 12-13] Plaintiff testified that the house was placed in Defendant Masis Tamazyan's name because she did not want to lose her benefits. [CT VI, pg 28, ln 14-27] These facts establish that house was purchased by Yeznik Tamazyan for the benefit of Plaintiff. Title was placed in Defendant Masis Tamazyan name because Plaintiff believed that she would lose her benefits. Mr. Shagenyan testified that Defendant Masis Tamazyan paid for half of the purchase and explained that the payment was for exchange for Defendant Masis Tamazyan receiving the Kirby House. In essence, Defendant Masis Tamazyan did not buy Plaintiff's house but paid off her interest in the Kirby House." (Opp., 5:19-27.)

Further, Plaintiff asserts that "Defendants' argue that the beneficiary of a resulting trust can only be the person who paid for the purchase of the property. This ignores the law." (Opp., 6:4-5.) Plaintiff cites *Martin v. Kehl*, supra, 145 Cal.App.3d at pp. 239, as quoted above, where the court expressed that "a trust is presumed to result in favor of the person by or for whom such payment is made." However, Plaintiff ignores the statement made by the court in the same paragraph, which defines a resulting trust as one which "arises in favor of the payor of the purchase price of the property where the purchase price, or a part thereof, is paid by one person and the title is taken in the name of another." (Id. at p. 238.) The evidence demonstrates that Plaintiff did not pay, nor did Plaintiff have title.

Finally, Plaintiff contends that Tamazyan's "testimony should not be given any credibility given that he lied about his involvement in the eviction. [CT V2, pg 30, ln 26-28, pg 31, ln 1-12]" (Opp., 6:1-3.) Defendants directly respond to this, asserting that "[d]iscard Masis's testimony entirely, and Plaintiff's case is defeated by her own: she paid nothing (RT-1 34:24-26, 44:27- 28); no one ever signed a document promising to hold the Property for her (RT-1 37:4-7); title was kept out of her name 'to maximize benefits' (RT-1 48:23-49:10); her demand for title was refused (RT-1 46:10-27); and she 'would not have sued' had title remained in her son's name (RT-1 58:27-59:24)." (Reply, 4:25-5:3.)

Based on the foregoing, Plaintiff did not demonstrate the existence of a resulting trust by clear and convincing evidence. The credible evidence demonstrates that Plaintiff never paid any money towards the purchase of the property and did not sign any documents for the purchase of property. Plaintiff purposefully did not purchase the property because it would affect her benefits. There was no credible evidence that the funds used by Tamazyan to purchase the property were funds owed to Plaintiff for her purported interest in another property known as the "Kirby" property.

3. Second Cause of Action for (In the Alternative) Declaratory Relief Re: Deed of Trust Priority

In the second cause of action, Plaintiff alleges, inter alia, that "[a]n actual, justiciable controversy has arisen between the parties as to their respective rights and obligations regarding the title of the Subject Property... Plaintiff contends that Deed of Trust, Exhibit 2, has priority over the Interspousal Transfer Grant Deed, Exhibit 4. Defendants disputes these allegations... Pursuant to Section 1060 of the California Code of Civil Procedure, Plaintiff seeks a judicial declaration that Plaintiff's Deed of Trust, Exhibit 2, has priority over the Interspousal Transfer Grant Deed, Exhibit 4." (FAC, ¶¶ 24-26.)

"California follows the 'first in time, first in right' system of lien priorities. (§ 2897.) [3]With respect to real property, a conveyance recorded first generally has priority over any later-recorded conveyance. (§ 1214.) A properly recorded conveyance of real property also serves as constructive notice of its contents to all subsequent purchasers and encumbrances. (§ 1213.) A 'conveyance' within the meaning of sections 1213 and 1214 includes 'every instrument in writing by which any estate or interest in real property is created, aliened, mortgaged, or incumbered, or by which the title to any real property may be affected, except wills.' (§ 1215.)." ((Thaler v. Household Finance Corp. (2000) 80 Cal.App.4th 1093, 1099.)

Defendants first explain that "[t]he alternative claim asks the Court to declare Plaintiff's 1998 deed of trust 'senior to' and an encumbrance upon Elen's interest." (Mot., 14:9-10.) Defendants cite *Domarad v. Fisher & Burke, Inc.* (1969) 270 Cal.App.2d 543, 553-554 which expressed that "a deed of trust is a mere incident of the debt it secures and that an assignment of the debt 'carries with it the security.' [citations]; that a deed of trust is

inseparable from the debt and always abides with the debt, and it has no market or ascertainable value, apart from the obligation it secures [citations]; and that a deed of trust has no assignable quality independent of the debt, it may not be assigned or transferred apart from the debt, and an attempt to assign the deed of trust without a transfer of the debt is without effect.” Defendants then assert that “[h]ere there is no obligation. Plaintiff never loaned or gave Masis \$68,000 — or anything (RT-1 36:14–19, 44:20–23, 46:2–8); she does not know why the note promises payment (RT-1 36:20–22); Masis received nothing (RT-2 17:28–18:7); no payment has ever been demanded (RT-2 19:14–20); and nothing comes due before March 10, 2028 (RT-1 36:14–17; Exh. 1). A note unsupported by any consideration secures nothing; a deed of trust securing nothing encumbers nothing and can be ‘senior’ to nothing.” (Mot., 14:13-18.)

Plaintiff addresses the deed of trust, asserting that “Defendant’s [sic] argue that no money was exchanged for the Note and Deed of Trust. The Note and Deed of Trust states that Defendant Masis Tamazyan owes a debt of \$68,000. If the Court is looking for consideration, Defendant Masis Tamazyan obtained title at no cost to him. The funds that he paid were in exchange for the Kirby house. [CT VI, pg 21, ln 16-24] The Note and Deed of Trust were created to protect Plaintiff. [CT VI, pg 23, ln 6-16].” (Opp., 7:12-16.)[4]

Defendants’ reply asserts that “[t]he Opposition’s answer to Domarad is the note’s recital: ‘The Note and Deed of Trust states that Defendant Masis Tamazyan owes a debt of \$68,000.’ A recital is not an obligation. Plaintiff testified that she never loaned or gave Masis \$68,000 — or any money — in connection with the Property, the note, or the deed of trust, and that she does not know why the note promises her payment. (RT-1 36:14–22, 44:20–23, 46:2–8.) Masis received nothing (RT-2 17:28–18:7), and no payment has ever been demanded (RT-2 19:14–20). The Opposition senses the problem — ‘If the Court is looking for consideration,’ it offers, Masis ‘obtained title at no cost to him’ because his funds ‘were in exchange for the Kirby house’ (Opp. 7:13–15) — but that confuses the consideration for the 1998 purchase with a debt owed to Plaintiff. Whatever Masis paid, and to whomever, no witness testified that he owes Plaintiff \$68,000.” (Reply, 5:16-25.)

The parties also discuss whether Plaintiff or Tahmasian’s recording takes precedence; however, as Defendants contend, “[t]he Court need not resolve that question, however, because an instrument securing no obligation encumbers no one, senior or junior: whatever its recording date, Plaintiff’s deed of trust is unenforceable against Elen’s interest for the more basic reason that

there is no debt.” (Mot., 15:9-12.) Thus, the key issue is that Plaintiff’s deed of trust is unsupported by consideration. The deed of trust is incapable of being senior to anything because the evidence demonstrates that no debt was paid. Without consideration, a note secures nothing. (See *Domarad v. Fisher & Burke, Inc.*, supra, 270 Cal.App.2d at p. 553 [“it has no market or ascertainable value, apart from the obligation it secures.”].) Plaintiff does not establish or provide evidence supporting the validity and enforceability of the deed of trust. Although Plaintiff asserts that consideration exists, the record establishes that Plaintiff never paid any money to Tamazyan, and Tamazyan never sought any money from Plaintiff. Without consideration, there is no valid underlying debt, and the deed of trust is unenforceable. Without an enforceable deed of trust, Plaintiff’s deed cannot take precedence over Tahmasian’s deed, regardless of the fact that Plaintiff’s deed of trust was executed first.

Conclusion

Based on the foregoing, the Court finds in favor of Defendants against Plaintiff on their motion for judgment pursuant to California Code of Civil Procedure section 631.8. Specifically on the first cause of action, the Court finds that Plaintiff is not entitled to declaratory relief in her favor because of the bar of the statute of limitations and because she failed to establish by clear and convincing evidence that she is entitled to a resulting trust. As to the second cause of action, Plaintiff is not entitled to declaratory relief in her favor because the subject deed of trust is unenforceable against Tahmasian’s interest in the property because it secures no enforceable obligation and Plaintiff does not hold a legal or equitable ownership interest in the property.

Within ten days after this Statement of Decision becomes final, Defendants are ordered to file and serve a proposed judgment on the First Amended Complaint in accordance with this Statement of Decision (with a courtesy copy delivered to Dept. 508). The Court hereby dismisses the Doe defendants if not dismissed previously.[5]

Defendants are ordered to give notice of this [Tentative and Proposed] Statement of Decision.

DATED: September
21, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court

[1] The
beneficiary of the Note is identified as "Iranush Akverdyan," but the Court
understands this to be a reference to Plaintiff.

[2] The
Court did not find the testimony of this witness to be credible because there
was no foundation provided as to how this witness had personal knowledge of any
of the facts to which he testified.

[3] The
parenthetical references in this case are to the California Civil Code.

[4] Here
again, the Court found the testimony at page 21 regarding the Kirby house to
lack any foundation as to the knowledge of the witness as to who paid for the
property at issue in this case and how much. Contrary to Plaintiff's position,
the witness testified that half of the purchase price came from Tamazyan even
though Plaintiff contends that her husband paid the purchase price.

[5] The parties
should be prepared to address the status of the Cross-Complaint at the hearing.